

HOUSE No. 2034

The Commonwealth of Massachusetts

PRESENTED BY:

Marcus S. Vaughn

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act ensuring the enforcement of mandatory minimums for firearm related crimes.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>1/3/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>4/22/2025</i>

HOUSE No. 2034

By Representative Vaughn of Wrentham, a petition (accompanied by bill, House, No. 2034) of Marcus S. Vaughn relative to the enforcement of mandatory minimum sentences for firearm related crimes. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1806 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act ensuring the enforcement of mandatory minimums for firearm related crimes.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 10 of Chapter 269 of the General Laws is hereby amended by inserting at the end
2 thereof the following:-

3 “p) A sentencing judge who fails or otherwise refuses to impose a sentence of the
4 required minimum term pursuant to this section shall not be entitled to judicial immunity and
5 may be held civilly liable for the damages caused in the commission of a felony by an offender
6 of this section after such offender’s release.

7 q) Any judge, justice, or other arbiter who releases a person accused of violating this
8 section on bail pursuant to section 58 of chapter 276 shall not be entitled to judicial immunity

9 and may be held civilly liable for the damages caused in the commission of a felony by said
10 person while out on said bail.”